



Dangerous Drugs Act 1964

1964 CHAPTER 36

An Act to amend the Dangerous Drugs Act 1951; to create certain offences in connection with the drug known as cannabis and to penalize the intentional cultivation of any plant of the genus cannabis; and for purposes connected with the matters aforesaid.

[10th June 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendments of Dangerous Drugs Act 1951

Substitution,
for purposes
of Part III
of Dangerous
Drugs Act
1951, of new
list of drugs,
&c., and
provisions
consequential
thereon.

14 & 15 Geo. 6.
c. 48.

1.—(1) In section 8 (restriction on importation and exportation of drugs to which Part III of the Act applies) of the Dangerous Drugs Act 1951 (hereafter in this Act referred to as the “principal Act”), for the reference to a drug to which the said Part III applies there shall be substituted a reference to a substance for the time being specified in Part I of Schedule 1 to this Act, other than a preparation or other substance for the time being falling within Part II of that Schedule.

(2) In section 9 of the principal Act (power to control manufacture, sale, &c., of drugs to which Part III of that Act applies) for references to the said drugs and to any of them there shall be substituted references respectively to the substances for the time being specified in Part I of Schedule 1 to this Act and to any of them.

(3) In consequence of the enactment of the two foregoing subsections, section 10(1) of the principal Act (which specifies the drugs to which Part III of that Act applies) and section 10(2) of that Act (whereunder Her Majesty has, by Orders

in Council entitled respectively the Dangerous Drugs Act 1951 (Application) Order 1963 and the Dangerous Drugs Act 1951 (Application) (No. 2) Order 1963, applied the said Part III to certain drugs additional to those specified in section 10(1), being drugs falling within Part I of Schedule 1 to this Act) shall cease to have effect.

(4) Section 10(3) of the principal Act (whereunder Her Majesty has by the first-mentioned of the Orders in Council aforesaid applied Part III of that Act with modifications to two drugs, and their respective salts, which fall within Part I of Schedule 1 to this Act, that is to say, to codeine and ethyl-morphine and their respective salts) shall cease to have effect; but, until such day as Her Majesty may by Order in Council appoint (hereafter in this Act referred to as the "appointed day"), the said Part III shall, in relation to those drugs and their respective salts, continue to have effect subject to the modifications specified in Schedule 2 to the said first-mentioned Order.

(5) Notwithstanding subsections (1) to (3) of this section, the following, namely,—

- (a) a preparation, admixture, extract or other substance containing less than 0.2 per cent. of morphine or a salt of morphine or less than 0.1 per cent. of cocaine or a salt of cocaine (not being a solution or dilution of morphine or cocaine or a salt of either of them in an inert substance, whether liquid or not); and
- (b) a preparation, admixture, extract or other substance containing less than 0.1 per cent. of ecgonine or any derivative of ecgonine from which it may be recovered industrially;

shall be excepted from the operation of Part III of the principal Act until the appointed day; and for the purposes of this subsection percentages, in the case of morphine or salts of morphine, shall be calculated as in respect of anhydrous morphine and, in the case of liquid preparations, shall be calculated on the basis that a preparation containing 1 per cent. of a substance means a preparation in which 1 gramme of the substance, if a solid, or 1 millilitre of the substance, if a liquid, is contained in every 100 millilitres of the preparation, and so in proportion for any greater or less percentage.

(6) Section 10(4) of the principal Act (by virtue whereof, in consequence of divers declarations of Her Majesty in Council and of a declaration of His late Majesty King George the Fifth in Council, Part III of that Act has ceased to apply to certain preparations containing drugs to which that Part applies) shall cease to have effect; but the preparations which, at the commencement of this Act, are by virtue of that subsection

excepted from the operation of the said Part III shall continue to be so excepted until the appointed day.

(7) In section 14 of the principal Act (entry and search of premises, &c., to obtain evidence of offences) and in the proviso to section 15(2) of that Act (restriction of punishment of persons committing certain offences through inadvertence), for any reference to drugs to which Part I, II or III of that Act applies or to drugs to which that Act applies there shall be substituted a reference to drugs to which Part I or II of that Act applies and substances for the time being specified in Part I of Schedule 1 to this Act; but until the appointed day the references so substituted shall be construed as not including references to preparations and other substances excepted from the operation of Part III of the principal Act by either of the two last foregoing subsections.

Power of
Her Majesty
in Council
to amend
Schedule 1
to this Act.

2. If—

- (a) it appears to Her Majesty that a decision of the Commission or of the Organisation to alter any of the Schedules to the Single Convention or to apply to a substance measures of control applicable under that Convention to substances specified in Schedule 1 thereto, requires the addition of a substance to, or the removal of a substance from, Part I or II of Schedule 1 to this Act or both the removal of a substance from Part I of that Schedule and the removal of a substance from Part II thereof; or
- (b) it appears to Her probable that there will be taken such a decision as aforesaid of the Commission or of the Organisation as will require the addition of a substance to Part I of Schedule 1 to this Act and that, in the circumstances of the case, it is expedient to anticipate the decision;

She may by Order in Council make the requisite modifications in the said Schedule 1.

Repeal of
Part IV of
1951 Act.

3.—(1) Section 11 of the principal Act (by virtue whereof it is not lawful for a person in the United Kingdom to trade in, or manufacture for the purpose of trade, a product obtained from any of the phenanthrene alkaloids of opium or from the ecgonine alkaloids of the coca leaf, not being a product which was, on 13th July 1931, being used for medical or scientific purposes or a product of medical or scientific value specified in an Order in Council under that section) shall cease to have effect on the appointed day.

Section 12 of the principal Act (power to apply Part III Act to products mentioned in section 11) is hereby

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4. Section 4 (drugs to which Part I of the Act applies) of the principal Act shall be amended—

Addition of poppy-straw to Part I of 1951 Act, and renaming of certain drugs to which Part I applies.

(a) by the substitution, in subsection (1), for the words “Indian hemp, and resins obtained from Indian hemp and all preparations of which such resins form the base”, of the words “poppy-straw, cannabis, cannabis resin and all preparations of which cannabis resin forms the base”; and

(b) by the omission, in subsection (2), of the words from “and (d) the expression ‘Indian hemp’ means” to the end.

5.—(1) In subsection (2) of section 9 of the principal Act and in the subsection which, by subsection (4) of that section, is substituted for the said subsection (2) in the application of section 9 to Northern Ireland, for the words “an offence under the enactments relating to the customs as applied by this Act or that Act”, there shall be substituted the words “an offence under the Customs and Excise Act 1952 or the enactments repealed thereby, being an offence in relation to a drug or other substance whose importation or exportation was prohibited or restricted by this Act or the said Act of 1920”.

Minor amendments relating to customs offences.

15 & 16 Geo. 6. & 1 Eliz. 2. c. 44.

(2) In section 320(3) of the Customs and Excise Act 1952 (section 15 of the principal Act not to be deemed, for the purposes of proceedings under sections 45, 56 or 304 of the Act of 1952 for an offence in connection with the importation or exportation of drugs in contravention of the principal Act, expressly to provide a penalty for that offence), after the word “drugs” there shall be inserted the words “or other substances”.

6. In section 23(1) of the principal Act (which defines “corresponding law” for the purposes of sections 14 and 15 thereof), the reference to a law providing for the control and regulation in a country outside the United Kingdom of the manufacture, sale, use, export and import of drugs in accordance with the provisions of the Hague Convention, the Geneva Convention (No. 1) and the Geneva Convention (No. 2) shall be construed as including a reference to a law providing for the control and regulation in such a country of the manufacture, sale, use, export and import of drugs and other substances in accordance with the provisions of the Single Convention.

Amendment of section 23(1) of 1951 Act.

7. Section 1(1) of the principal Act shall cease to have effect in so far as it provides that the importation or bringing into the United Kingdom of a drug to which Part I of that Act applies shall not be lawful except it be into a port approved by the Commissioners of Customs and Excise for the importation of drugs to which that Part of that Act applies, and section 2(1) of that Act shall cease to have effect in so far as it provides that the exportation from the United

Abolition of requirement of use of approved ports.

Kingdom of a drug to which the said Part I applies shall not be lawful except it be from a port so approved for the exportation of drugs to which that Part of that Act applies.

Repeal of unnecessary or spent provisions of 1951 Act, and amendment of references to certain Acts of Parliament of Northern Ireland.

8.—(1) The following words in, and provisions of, the principal Act (which are unnecessary or spent) shall cease to have effect, namely,—

- (a) the words “ or bring ” in sections 1(1), 5 and 8 (importation and exportation of drugs) ;
- (b) section 20 (destination of fines in certain cases) ; and
- (c) section 24(2) (imprisonment for non-payment of certain fines imposed in Northern Ireland).

(2) For the references to the Pharmacy and Poisons Acts (Northern Ireland) 1925 and 1945 in section 9(4) of the principal Act there shall be substituted references to the Pharmacy and Poisons Acts (Northern Ireland) 1925 to 1955.

New Offences concerning Cannabis and the Cannabis Plant

Penalization of permitting premises to be used for smoking cannabis, &c.

9.—(1) If a person—

- (a) being the occupier of any premises, permits those premises to be used for the purpose of smoking cannabis or cannabis resin or of dealing in cannabis or cannabis resin (whether by sale or otherwise) ; or
- (b) is concerned in the management of any premises used for any such purpose as aforesaid ;

he shall be guilty of an offence against the principal Act.

(2) The reference in section 14(1) of the principal Act to the execution of Parts I, II and III thereof shall be construed as including a reference to the execution of the foregoing subsection.

Penalization of intentional cultivation of cannabis plant.

10.—(1) A person who, except under a licence granted by a Secretary of State (or, in Northern Ireland, by the Ministry of Home Affairs), knowingly cultivates any plant of the genus cannabis shall be guilty of an offence against the principal Act.

(2) In section 21 of the principal Act (licences for the purposes of that Act may be issued on such terms and conditions as the issuing authority thinks proper) and in section 15(1)(b) thereof (which specifies, amongst those guilty of offences, a person who acts in contravention of, or fails to comply with, the conditions of a licence issued under that Act) the references to that Act shall include references to the foregoing subsection ; and the reference in section 15(1)(c) of that Act (which specifies, amongst those guilty of offences, a person who, for the purposes of procuring the issue of a licence or authority under the Act, makes a lying statement) to any such licence or authority as is mentioned in paragraph (b) shall be construed accordingly.

(3) The reference in section 14(1) of the principal Act to the execution of Parts I, II and III thereof shall be construed as

including a reference to the execution of subsection (1) of this section.

Supplementary Provisions

11.—(1) In this Act,—

Interpretation.

“the Commission” means the Commission on Narcotic Drugs of the Economic and Social Council of the United Nations;

“medicinal opium” has the same meaning as in section 4 of the principal Act;

“the Organisation” means the World Health Organisation;

“the principal Act” means the Dangerous Drugs Act 1951;

“the Single Convention” means the Single Convention on Narcotic Drugs signed at New York on 30th March 1961.

(2) For the purposes of this Act and the principal Act—

“cannabis” (except where used in the expression “cannabis resin”) shall mean the flowering or fruiting tops of any plant of the genus *cannabis* from which the resin has not been extracted, by whatever name they may be designated;

“cannabis resin” shall mean the separated resin, whether crude or purified, obtained from any plant of the genus *cannabis*;

“opium poppy” shall mean the plant of the species *Papaver somniferum* L;

“poppy-straw” shall mean all parts except the seeds of the opium poppy, after mowing.

(3) The specification in paragraph 1 of Schedule 1 to this Act of a substance shall, if the existence of isomers of that substance is possible within the specific chemical designation thereof, be taken to comprehend the specification of any isomer of that substance whose existence is possible as aforesaid; and references in paragraphs 2, 3, 8, 13 and 14 of that Schedule to a substance for the time being specified in the said paragraph 1 shall be construed accordingly.

12. For the purposes of section 6 of the Government of Ireland Act 1920 (which relates to the powers of the Parliament of Northern Ireland to make laws) this Act shall be deemed to have been passed before the day appointed for the purposes of that section.

Saving for powers of Parliament of Northern Ireland.
10 & 11 Geo. 5.
c. 67.

13.—(1) This Act may be cited as the Dangerous Drugs Act 1964, and the principal Act and this Act may be cited together as the Dangerous Drugs Acts 1951 and 1964.

Short title, citation and repeal.

(2) The provisions of the principal Act specified in column 1 of Schedule 2 to this Act are hereby repealed to the extent specified in column 2 of that Schedule.

SCHEDULES

SCHEDULE 1

SUBSTANCES DEALINGS IN WHICH ARE TO BE SUBJECT TO
CONTROL UNDER PART III OF DANGEROUS DRUGS ACT 1951

PART I

SUBSTANCES DEALINGS IN WHICH ARE TO BE SUBJECT TO CONTROL
SUBJECT, AS REGARDS IMPORTATION AND EXPORTATION, TO THE
EXCEPTIONS SET OUT IN PART II

1. The following substances, namely:—

Acetyldihydrocodeine.	Hydromorphinol.
Allylprodine.	Hydromorphone.
Alphacetylmethadol.	Hydroxypethidine.
Alphameprodine.	Isomethadone.
Alphamethadol.	Ketobemidone.
Alphaprodine.	Levomethorphan.
Anileridine.	Levomoramide.
Benzethidine.	Levophenacylmorphan.
Benzylmorphine (3-benzylmor- phine).	Levorphanol.
Betacetylmethadol.	Metazocine.
Betameprodine.	Methadone.
Betamethadol.	Methadyl acetate.
Betaprodine.	Methyldesorphine.
Clonitazene.	Methyldihydromorphine (6-methyldihydromorphine).
Cocaine.	Metopon.
Codeine.	Morpheridine.
Desomorphine.	Morphine.
Dextromoramide.	Morphine methobromide, mor- phine-N-oxide and other penta- valent nitrogen morphine deri- vatives.
Dextropropoxyphene.	Myrophine.
Diamorphine.	Nicocodine.
Diampromide (N-[2-(N-methyl- phenethylamino) propyl] pro- pionanilide).	Nicomorphine (3,6-dinicotinoyl- morphine).
Diethylthiambutene.	Noracymethadol.
Dihydrocodeine.	Norcodeine.
Dihydromorphine.	Norlevorphanol.
Dimenoxadole.	Normethadone.
Dimepheptanol.	Normorphine.
Dimethylthiambutene.	Oxycodone.
Dioxaphetyl butyrate.	Oxymorphone.
Diphenoxylate.	Pethidine.
Dipipanone.	Phenadoxone.
Ecgonine.	Phenampromide.
Ethylmethylthiambutene.	Phenazocine.
Ethylmorphine (3-ethylmorphine).	Phenomorphane.
Etonitazene.	Phenoperidine.
Etoperidine.	Pholcodine.
Furethidine.	
Hydrocodone (dihydrocodeinone).	

Piminodine.	4-Cyano-2-dimethylamino-4, 4-	SCH. 1
Proheptazine.	diphenylbutane.	
Propерidine (1-methyl-4-phenyl- piperidine-4-carboxylic acid iso- propyl ester).	4-Cyano-1-methyl-4-phenyl- piperidine.	
Racemethorphan.	1-Methyl-4-phenylpiperidine-4- carboxylic acid.	
Racemoramide.	2-Methyl-3-morpholino-1, 1-	
Racemorphan.	diphenylpropanecarboxylic acid.	
Thebacon.	4-Phenylpiperidine-4-carboxylic	
Thebaine.	acid ethyl ester.	
Trimeperidine.		

2. Any ester (other than one expressly mentioned in paragraph 1 above) or ether (other than one so mentioned) of a substance for the time being specified in that paragraph.

3. Any salt of a substance for the time being specified in paragraph 1 or 2 above.

4. Any derivative of ecgonine which is convertible to ecgonine or to cocaine.

5. Concentrate of poppy-straw (that is to say, the material arising when poppy-straw has entered into a process for the concentration of its alkaloids).

6. Medicinal opium.

7. Any extract or tincture of cannabis.

8. Any preparation, admixture, extract or other substance containing any proportion of a substance for the time being specified in paragraph 1 above or in any of paragraphs 2 to 7 above.

PART II

PREPARATIONS AND OTHER SUBSTANCES WHOSE IMPORTATION AND EXPORTATION ARE EXCEPTED FROM CONTROL

9.—(1) A preparation of not more than one of the substances to which this paragraph applies, when—

(a) compounded with one or more other ingredients in such a way that the preparation has no, or a negligible, risk of abuse, and that the substance cannot be recovered by readily applicable means or in a yield which would constitute a risk to health; and

(b) containing not more than 100 milligrammes of the substance per dosage unit and with a concentration of not more than 2·5 per cent. in undivided preparations.

(2) The substances to which this paragraph applies are acetyldihydrocodeine, codeine, dextropropoxyphene, dihydrocodeine, ethylmorphine (3-ethylmorphine), norcodeine, pholcodine and their respective salts.

10. A preparation of cocaine containing not more than 0·1 per cent. of cocaine calculated as cocaine base, being a preparation compounded with one or more other ingredients in such a way that the preparation has no, or a negligible, risk of abuse, and that the cocaine cannot be recovered by readily applicable means or in a yield which would constitute a risk to health.

SCH. 1

11. A preparation of medicinal opium or of morphine containing (in either case) not more than 0·2 per cent. of morphine calculated as anhydrous morphine base, being a preparation compounded with one or more other ingredients in such a way that the preparation has no, or a negligible, risk of abuse and that the opium or, as the case may be, the morphine, cannot be recovered by readily applicable means or in a yield which would constitute a risk to health.

12. Solid dose preparations of diphenoxylate containing, per dosage unit, not more than 2·5 milligrammes of diphenoxylate calculated as base and not less than 25 microgrammes of atropine sulphate.

13. *Pulvis Ipecacuanhae et Opii Compositus*:—

10 per cent. opium, in powder,

10 per cent. ipecacuanha root, in powder,
well mixed with

80 per cent. of any other powdered ingredient containing neither a drug to which Part I or II of the principal Act applies nor a substance for the time being specified in paragraph 1 of this Schedule or in any of paragraphs 2 to 8 thereof.

14. Mixtures containing not more than one of the preparations specified in paragraphs 9 to 13 above, being mixtures whereof none of the other ingredients is either a drug to which Part I or II of the principal Act applies or a substance for the time being specified in paragraph 1 of this Schedule or in any of paragraphs 2 to 8 thereof.

SCHEDULE 2

PROVISIONS OF DANGEROUS DRUGS ACT 1951 REPEALED

<i>Provision</i>	<i>Extent of Repeal</i>
Section 1 ...	In subsection (1), the words "or bring" and the words "and into an approved port", and subsection (2).
Section 2 ...	In subsection (1), the words "and from an approved port", and subsection (3).
Section 4 ...	In subsection (2), the words from "and (d) the expression 'Indian hemp'" to the end.
Section 5 ...	The words "or bring".
Section 8 ...	The words "or bring".
Section 10 ...	The whole section.
Section 12 ...	The whole section.
Section 20 ...	The whole section.
Section 22 ...	Subsection (1).
Section 24 ...	Subsection (2).
Section 25 ...	In subsection (2), the proviso, and subsection (3).